

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Craig Anderson	Team: Squad #04	CCRB Case #: 201702250	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 03/13/2017 12:55 PM, Wednesday, 03/15/2017 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/13/2018	Precinct: 42		
Date/Time CV Reported Wed, 03/22/2017 1:15 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Wed, 03/22/2017 1:15 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SDS Patricio Ovando	02047	922922	NARCBBX
2. SGT Sean Lynch	04339	917115	NARCBBX
3. DT3 Angel Reynoso	07065	935586	NARCBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Steven Colon	06832	940993	NARCBBX
2. DT3 Abdiel Anderson	01429	932254	NARCBBX
3. DT3 Anthony Disimone	00340	918874	NARCBBX
4. DT3 Rolando Carbonell	06831	928017	NARCBBX
5. LT Brian Hoban	00000	926960	NARCBBX
6. LT Richard Vetrano	00000	921839	NARCBBX
7. DT2 Jeffrey Conover	02081	922148	NARCBBX

Officer(s)	Allegation	Investigator Recommendation
A . SGT Sean Lynch	Abuse: On March 13, 2017, Sergeant Sean Lynch threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . DT3 Angel Reynoso	Abuse: On March 13, 2017, Detective Angel Reynoso threatened to arrest § 87(2)(b)	B . Unsubstantiated
C . SGT Sean Lynch	Abuse: On March 13, 2017, Sergeant Sean Lynch entered § 87(2)(b) in the Bronx.	C . Exonerated
D . SDS Patricio Ovando	Abuse: On March 15, 2017, Sergeant Patricio Ovando threatened to damage § 87(2)(b)'s property.	D . Exonerated
E . SDS Patricio Ovando	Abuse: On March 15, 2017, Sergeant Patricio Ovando entered § 87(2)(b) in the Bronx.	E . Exonerated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via a letter, received at the agency on March 22, 2017 (BR 01).

A federal arrest warrant was issued for § 87(2)(b)'s son, § 87(2)(b) on § 87(2)(b) (BR 02). § 87(2)(b) turned himself in on March 20, 2017 (BR 03). Between those dates, NYPD officers went to § 87(2)(b)'s residence at § 87(2)(b), in the Bronx on two occasions to attempt to arrest § 87(2)(b) who was not there either time.

On March 13, 2017, at approximately 12:55 p.m., a group of officers from the Bronx Narcotics Violent Crimes Squad – including Sgt. Sean Lynch, Det. Angel Reynoso, Lieutenant Richard Vetrano, Lieutenant Brian Hoban, Det. Jeffrey Conover, and Det. Rolando Carbonell – went to § 87(2)(b)'s apartment and knocked on her door. § 87(2)(b) answered and spoke primarily to Sgt. Lynch and Det. Reynoso. The officers said they wanted to see if § 87(2)(b) was in the apartment. § 87(2)(b) said he was not there and refused to let the officers in without a warrant. Sgt. Lynch and Det. Reynoso both allegedly told § 87(2)(b) that she would be arrested if she did not let them in (**Allegations A and B**). After some discussion, the officers showed § 87(2)(b) the arrest warrant for § 87(2)(b). § 87(2)(b) stepped away from the door and the officers entered her apartment (**Allegation C**). After seeing that § 87(2)(b) was not there, the officers left the apartment.

A different group of officers from Bronx Narcotics – consisting of Sgt. Patricio Ovando, Det. Anthony DiSimone, Det. Steven Colon, and Det. Abdiel Anderson – came to the apartment on March 15, 2017, at approximately 6:40 a.m. On this occasion, § 87(2)(b) answered her door but quickly stepped into her hallway and locked it behind her so the officers could not enter. When § 87(2)(b) said the officers could not enter, Sgt. Ovando allegedly said he would break down the door if she did not let them in (**Allegation D**). § 87(2)(b) eventually let the officers enter her apartment (**Allegation E**). After seeing that § 87(2)(b) was not there, the officers left. No individual was arrested or issued a summons during either of the two visits to the apartment.

The owner of § 87(2)(b) said that they have no video footage of the incident (BR 04).

Mediation, Civil and Criminal Histories

- § 87(2)(b) eventual arrest rendered this case unsuitable for mediation.
- A Freedom of Information Law request for any Notice of Claim filed in relation to this incident was submitted to the Comptroller's Office on May 25, 2017. Their response will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (BR 07).
- Det. Reynoso has been a member of the NYPD for 12 years. There are three prior complaints against him containing three allegations. § 87(2)(g), § 87(4-b)
[REDACTED] no FADO allegations were substantiated.

- Sgt. Lynch has been a member of the NYPD for 20 years. There are 14 prior complaints against him containing 29 allegations, none of which was substantiated.
- Sgt. Ovando has been a member of the NYPD for 18 years. There are four prior complaints against him containing five allegations.
 - In case 201211316, two entry and search allegations were substantiated. The CCRB recommended charges; the NYPD's disposition is unknown.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) said that on March 13, 2017, she interacted primarily with one Hispanic officer and one white officer, both of whom threatened to arrest her. Det. Reynoso is Hispanic and Sgt. Lynch is white. Although they denied threatening to arrest § 87(2)(b) both Det. Reynoso and Sgt. Lynch said that they handled most of the interaction with § 87(2)(b) § 87(2)(g).
- Numerous officers entered § 87(2)(b)'s apartment on March 13, 2017. § 87(2)(g)
- § 87(2)(b) said the officer who threatened to break down her door on March 15, 2017, identified himself by name as Sgt. Ovando. § 87(2)(g)
- § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Allegation C – Abuse of Authority: On March 13, 2017, Sergeant Sean Lynch entered § 87(2)(b), in the Bronx.

§ 87(2)(b) said that § 87(2)(b) lived with her in § 87(2)(b) until shortly before these incidents occurred (BR 08). § 87(2)(b) was shot on § 87(2)(b) and did not return to the apartment after being discharged from § 87(2)(b) on § 87(2)(b). The New York State Department of Motor Vehicles lists § 87(2)(b) as § 87(2)(b) address (BR 13). The arrest warrant for § 87(2)(b) was issued on § 87(2)(b) (BR 02).

On March 13, 2017, Sgt. Lynch, Det. Reynoso, and the other members of the team knocked on § 87(2)(b)'s door and identified themselves as police. § 87(2)(b) answered and the officers asked her if § 87(2)(b) was in the apartment. § 87(2)(b) said he was not. The officers wanted to come inside to check, but § 87(2)(b) said they could not come inside without a search warrant. At one point, she tried to close the door, but Sgt. Lynch stood in her doorway to block the door. After several minutes, Det. Reynoso showed her an arrest warrant for § 87(2)(b) and told her to get out of the way. Feeling she had no choice, § 87(2)(b) let the officers in. They looked around the apartment, saw that § 87(2)(b) was not there, and left.

Sgt. Lynch said (BR 11) his team was asked to go to the apartment by the investigating officer, Det. Kieron Ramdeen, who ultimately arrested § 87(2)(b) on March 20, 2017. (Det. Ramdeen was not present for either of the incidents referenced in this complaint.) Sgt. Lynch initially told § 87(2)(b) that they just wanted to talk to § 87(2)(b) about the incident in which he was shot. In his interview, Sgt. Lynch explained that they wanted to avoid telling § 87(2)(b) about the arrest warrant because if § 87(2)(b) happened to be out of the apartment, § 87(2)(b) could call and warn him about the warrant after the officers left, giving him a chance to flee. However, § 87(2)(b) was insistent that the officers could not enter the apartment unless they had an arrest warrant. After several minutes, Det. Reynoso showed § 87(2)(b) the arrest warrant, after which she verbally granted permission to enter.

Det. Reynoso said that when he went to § 87(2)(b)'s door, she told him that § 87(2)(b) was not there (BR 12). He asked if they could enter the apartment to verify that. § 87(2)(b) asked if they had a warrant and Det. Reynoso showed her the arrest warrant. She was “cooperative” after being shown the warrant and made no attempt to prevent the officers from entering.

To execute an arrest warrant, an officer may “enter any premises in which he reasonably believes the defendant to be present.” NY Criminal Procedure Law, Section 120.80 (BR 14). The “fellow-officer rule” states that even if an officer “lacks personal knowledge sufficient to establish probable cause,” his efforts to effect an arrest are lawful if they are based on the “result of communication with a superior or fellow officer.” People v. Powell, 101 A.D.3d 756 (BR 15).

§ 87(2)(g)
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§ 87(2)(g)

it is recommended that **Allegation C** be exonerated.

Allegation D – Abuse of Authority: On March 15, 2017, Sergeant Patricio Ovando threatened to damage § 87(2)(b)'s property.

Allegation E – Abuse of Authority: On March 15, 2017, Sergeant Patricio Ovando entered § 87(2)(b) in the Bronx.

§ 87(2)(b) said that when officers came to her apartment on March 15, 2017, she went into the building's hallway and immediately locked her door behind her, hoping to prevent the officers from entering (BR 08). The officers said they were looking for § 87(2)(b) and had to go inside. When § 87(2)(b) did not let them in, Sgt. Ovando showed her the arrest warrant for her son. § 87(2)(b) still did not open the door and attempted to leave. Sgt. Ovando said that if she did not open the door, he would call a judge and then break down the door. Sgt. Ovando said that only he and one other officer would go into the apartment and the rest would wait in the hallway. § 87(2)(b) agreed to this and opened the door. Sgt. Ovando and one other officer entered the apartment, saw that § 87(2)(b) was not there, and left.

Sgt. Ovando § 87(2)(g) denied threatening to break down her door if she did not open it (BR 10).

To execute an arrest warrant, an officer may “enter any premises in which he reasonably believes the defendant to be present.” If an officer is not admitted to the premises after “giving notice of his authority and purpose,” the officer may enter “by a breaking if necessary.” NY Criminal Procedure Law, Section 120.80 (BR 14).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be exonerated.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be exonerated.

Squad: 4

Investigator: _____

Signature

Print

Date

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Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date